

Smt.Laxmi Bai vs Jangi Singh on 30 June, 2023

Author: Arun Kumar Sharma

Bench: Arun Kumar Sharma

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IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR

BEFORE
HON'BLE SHRI JUSTICE ARUN KUMAR SHARMA

SECOND APPEAL No. 929 of 2006

BETWEEN: -

1. SMT. LAXMI BAI WIDOW OF PANCHAM SINGH, AGED ABOUT 72 YEARS (DELETED)
2. SAROJRANI W/O. HARI SINGH, R/O. VILLAGE VYAUHARI, TAHSIL HATA, DISTRICT DAMOH (MADHYA PRADESH)
3. LOKENDRA SINGH, AGED ABOUT 22 YEARS, S/O. SHRI HARI SINGH, R/O. VILLAGE VYAUHARI, TAHSIL HATA, DISTRICT DAMOH (MADHYA PRADESH)
4. MULAYAM SINGH (SINCE DEAD) THROUGH HIS LRS (1) KALYAN SINGH S/O. LATE MULAYAM SINGH, AGED ABOUT 45 YEARS, R/O. VILLAGE VYAUHARI, TAHSIL HATA, DISTRICT DAMOH (MADHYA PRADESH)
5. RAJENDRA SINGH S/O. LATE MULAYAM SINGH, AGED ABOUT 40 YEARS, R/O. VILLAGE VYAUHARI, TAHSIL HATA, DISTRICT DAMOH (MADHYA PRADESH)
6. BHAGWAN SINGH (SINCE DEAD) THROUGH HIS LRS ARVIND SINGH S/O. LATE BHAGWAN ALIAS VIJAY SINGH, AGED 48 YEARS, R/O. GUARISHANKAR WARD, HATA, DISTRICT DAMOH (MADHYA PRADESH)

.....APPELLANTS

(BY SHRI A. K. JAIN - ADVOCATE WITH SHRI AKHILESH JAIN - ADVOC
AND

1. JANGI SINGH S/O. JAGAT SINGH, AGED ABOUT 55 YEARS, R/O. VILLAGE VYAUHARI, TAHSIL HATA, DISTRICT

Signature Not Verified
Signed by: JITENDRA
KUMAR PAROUHA
Signing time: 6/30/2023
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2. CHANDAN SINGH S/O. JAGAT SINGH, AGED ABOUT 52 YEARS, R/O. VILLAGE VYAUHARI, TAHSIL HATA, DISTRICT DAMOH (MADHYA PRADESH)
3. STATE OF MADHYA PRADESH, THROUGH THE COLLECTOR, DISTRICT DAMOH (MADHYA PRADESH)

(BY SHRI ATUL ANAND AWASTHI - SENIOR ADVOCATE WITH SHRI R. S. THAKUR AND SHRI ABHAY TIWARI - ADVOCATE)

Reserved on : 21-06-2023

Pronounced on : 30 -06-2023

This appeal having been heard and reserved for order, pronouncement this day, the court pronounced the following:
JUDGMENT

The appellants / plaintiffs have preferred this second appeal under Section 100 of the Civil Procedure Code being aggrieved and dissatisfied with the impugned judgment and decree dated 12.05.2006 passed in Civil Appeal No. 13-A/2005 of the court of First Additional District Judge, Damoh dismissing the appeal arising out of Civil Suit No. 31-A/2002 of the court of 1st Civil Judge, Class-II, Hata, district Damoh (MP).

2. The relevant facts leading to the filing of this appeal as emerging from the case made out by the appellants are narrated in a nutshell for a better understanding and determination of the disputes between the parties are that the appellants / plaintiffs filed a civil suit for declaration that defendants / respondents have no right on Khasra Nos. 3, 38, 62, 1 (total area 19.657 hectare) situated at village Vyauhari and injunction was also claimed. As per plaint averments, one Kalyan Singh who was a Malgujar held extensive property in the village Vyauhari and Kanaktala. He had

two sons namely Jhalkan and Thakur Singh. Jhalkan in the year 1949 died issueless and Naval Singh was the only son of Thakur Singh. Nirpat Singh, Jagat Singh and Gajraj were the sons of Naval Singh. Gajraj Singh died issueless in the year 1941. Jangi and Chandan are sons of Jagat Singh. Pancham Singh, Hari Singh, Mulayam Singh and Vijay Singh alias Bhagwan Singh are the sons of Nirpat Singh. Plaintiff Laxmi Bai is widow of Pancham Singh. In the year 1941 Jhalkan Singh executed a registered Hibanama in favour of Pancham Singh, Hari Singh, Mulayam Singh and Vijay Singh and gifted his property to them. The properties so gifted by Jhalkan Singh were mutated in revenue record in the year 1945 and plaintiffs remained in possession. After the death of Nirpat Singh, his wife had illicit relationship with Jagat Singh, Jangi Singh and Chandan were begotten. Plaintiffs further pleaded that although defendants have no right in the family properties but to maintain good relationship in the year 1969 by family settlement, plaintiffs were allotted 97 acres of land and possession was delivered and defendants were allotted 46 acres of land. It was further pleaded that defendants initiated proceedings for partition in respect of khasra nos. 3, 38, 62, 1 and 36 of the village Vyauhari, which was registered as Revenue Case no. 4-A-25/96-97. The said case was dismissed in the year 1977 for non-appearance. In the year 1981 again the defendants filed application claiming 1/4th share in the aforesaid lands without making application for restoration of the previous case. By order dated 29-1-1982 the learned Naib Tahsildar allowed the application. It was further pleaded that the appeal preferred by plaintiffs was allowed by Sub Divisional Officer on 5.11.1982. Being aggrieved, defendant No.2 filed appeal before the Commissioner, Sagar and case was remanded. The Sub Divisional Officer by order dated 10.3.1988 upheld the order of Naib Tahsildar. The Sub Divisional Officer then by order dated 10.3.1988 upheld the order of Naib Tahsildar. The Appeal filed by plaintiffs was allowed on 30.7.1988 by the Commissioner Sagar. Defendant No.2 preferred revision before the Board of Revenue Gwalior and by order dated 4.1.1991 the revision was allowed. Plaintiffs claimed that defendants have no right on suit land i.e. Khasra nos. 3, 38, 62, 1 of Village Vyauhari. To set aside order of Board of Revenue was also challenged.

3. Defendants filed written statement and denied the plaint allegations. They admitted the family tree described in Para 2 of the plaint. They also admitted that Khasra nos. 1, 3, 36, 38 and 62 are disputed land. Execution of Hibanama by Jhalkan Singh was denied. Defendants stated that after death of plaintiffs' father their mother Phoolan Bahu cohabited with Jagat Singh and defendants were born. In counter claim, the defendants claimed half share in suit land.

4. Trial court by judgment and decree dated 28.8.2004 dismissed the civil suit. In issue No.2 Trial court found marriage of Jagat Singh and Phoolan Bahu void but found defendants entitled in share being illegitimate children. Trial court found Khasra nos. 1, 3, 36, 38 and 62 of village Vyauhari joint property of the family and defendants half share in it.

5. Appeal preferred by plaintiffs was registered as Civil Appeal No. 13A/2005. The Appeal was also dismissed by the lower appellate court.

6. This Second Appeal preferred by plaintiffs is admitted on 07.04.2008 on following substantial questions of law -

1. Whether respondents who are illegitimate children can claim as of right a share in the coparcenary property held by the appellants?

2. Whether the respondents can succeed the property of coparcenary as they are not legitimate children of late Jagat Singh in view of the specific provision under section 8 of the Hindu Succession Act, 1956 and the definition of 'related' as given in section 3 (1) (j) of the Hindu Succession Act, 1956?"

7. Heard learned counsel for both the parties and perused the impugned judgment of both the courts below and also perused the record.

8. Shri A. K. Jain, learned counsel for the appellants relying upon judgments of Hon'ble Supreme Court in the case of Bharatha Matha and another Vs. Vijaya Renganathan & others, reported in AIR 2010 SC 2685, Jineakeotin and others Vs. Kumar Seetaram Manjhi & others, reported in 2003(1)SCC 730 and Neelamma & others Vs. Sarojamma & others, reported in 2006 (9) SCC 612, has argued that a child born of void or voidable marriage is not entitled to claim inheritance in ancestral coparcenary property but is entitled only to claim share in self acquired properties. He further relying upon decision of this court in the case of Resham Lal Baswan Vs. Balwant Singh Jwala Singh Punjabi, reported in 1994 MPLJ 446 has contended that marriage between Jagat Singh and Phoolan Bahu was not proved, therefore, defendants cannot claim benefit U/s 16 of Hindu Marriage Act. Hence, prayer is made to allow the present appeal by setting aside the impugned judgments.

9. Shri Awasthi, learned counsel for the respondents relying upon decision of Hon'ble Apex Court in the case of Dhannulal & others Vs. Ganesh Ram & another, reported in 2015 (12) SCC 301 has argued that defendants despite being illegitimate child are entitled to claim share in the suit land. Hence, prayed is made for dismissal of the present appeal.

10. The Apex Court in the case of Bharatha Matha & another (Supra) held as under :-

25. In Jinia Keotin and Ors. v. Kumar Sitaram Manjhi and Ors. (2003) 1 SCC 730, this Court held that while engrafting a rule of fiction in Section 16 of the Act, the illegitimate children have become entitled to get share only in self-acquired properties of their parents. The Court held as under :-

"4.....Under the ordinary law, a child for being treated as legitimate must be born in lawful wedlock. If the marriage itself is void on account of contravention of the statutory prescriptions, any child born of such marriage would have the effect, per se, or on being so declared or annulled, as the case may be, of bastardising the children born of the parties to such marriage.

Polygamy, which was permissible and widely prevalent among the Hindus in the past and considered to have evil effects on society, came to be put an end to by the mandate of the Parliament in enacting the Hindu Marriage Act, 1955. The legitimate status of the children which depended very much upon the marriage between their parents being valid or void thus turned on the act of parents over which the innocent child had no hold or control. But for no fault of it, the innocent baby had to suffer a permanent set back in life and in the eyes of society by being treated as illegitimate. A laudable and noble act of the legislature indeed in enacting Section 16 to put an end to a great social evil. At the same time, Section 16 of the Act, while engrafting a rule of fiction in ordaining the children, though illegitimate, to be treated as legitimate, notwithstanding that the marriage was void or voidable chose also to confine its application, so far as succession or inheritance by such children are concerned to the properties of the parents only.

So far as Section 16 of the Act is concerned, though it was enacted to legitimise children, who would otherwise suffer by becoming illegitimate, at the same time it expressly provide in sub-section (3) by engrafting a provision with a non-obstante clause stipulating specifically that nothing contained in sub-section (1) or sub-section (2) shall be construed as conferring upon any child of a marriage, which is null and void or which is annulled by a decree of nullity under Section 12, 'any rights in or to the property of any person, other than the parents, in any case where, but for the passing of this Act, such child would have been incapable of possessing or acquiring any such rights by reason of this not being the legitimate child of his parents'. In the light of such an express mandate of the legislature itself there is no room for according upon such children who but for Section 16 would have been branded as illegitimate any further rights than envisaged therein by resorting to any presumptive or inferential process of reasoning, having recourse to the mere object or purpose of enacting Section 16 of the Act. Any attempt to do so would amount to doing not only violence to the provision specifically engrafted in sub-section (3) of Section 16 of the Act but also would attempt to court re-legislating on the subject under the guise of interpretation, against even the will expressed in the enactment itself. Consequently, we are unable to countenance the submissions on behalf of the appellants....."

26. This view has been approved and followed by this Court in *Neelamma and others v. Sarojamma and others* (2006) 9 SCC 612.

27. Thus, it is evident that in such a fact-situation, a child born of void or voidable marriage is not entitled to claim inheritance in ancestral coparcenary property but is entitled only to claim share in self acquired properties, if any.

11. This court in the case of *Reshamlal Vs. Balwant Singh* (Supra) held as under :-

4. Marriage Laws Amendment Act, 1976 provided legitimacy to children of a marriage hit by section 11 of Hindu Marriage Act. Section 11 provides a procedure for getting a marriage declared void if it contravenes one of the conditions of section 5 of the said Act. The conditions under which a marriage is said to be void are those mentioned in clauses (i), (iv) and (v) of section 5 of the said Act. Marriage between parties having a spouse living at the time of marriage is hit by this provision.

This provision has been interpreted to mean that there must be a marriage, which would be hit by the provisions of this Act and would not cover a relationship resulting from any other arrangement than the marriage. That is the reason why it has been held in *M. Muthayya vs. Kamu and others*, AIR 1981 NOC 172, that in those cases where there is no proof of solemnisation of marriage, the provision in section 16 is not attracted. The two courts, in the instant case have found that there was no marriage of any type between respondent Jhunjhibai and the deceased Baswan and hence, it will have to be held that even if Baswan had died after 1976, the benefit of section 16 of Hindu Marriage Act would not have been available to the appellant. That appears to be the reason why the learned counsel for the appellant did not seriously press the question as framed by this Court.

12. The decisions of Hon'ble Apex Court in the case of *Bharatha Matha and another Vs. Vijaya Renganathan & others*, *Jineakeotin and others Vs. Kumar Seetaram Manjhi & others and Neelamma & others Vs. Sarojamma & others* (Supra) and this court in the case of *Resham Lal Vs. Balwant Singh* (Supra) fortify the contentions advanced by learned counsel for the appellants. Thus, a child born of void or voidable marriage is not entitled to claim inheritance in ancestral coparcenary property. In the instant case, admittedly the suit properties are ancestral coparcenary properties. In the instant case, plaintiffs pleaded that after death of their father Nirpat Singh, their mother Phoolan Bahu developed illicit relationship with Jagat and Defendant No.1 & 2 were born. On perusal of record it is evident that plaintiffs pleaded that Phoolan Bahu after death of Nirpat Singh started living with Jagat Singh. In evidence also, plaintiffs witness deposed that Phoolan Bahu without marriage started living with Jagat Singh. On perusal of evidence it is evident that this fact has not been rebutted in evidence by the defendants. Defendants failed to prove that Phoolan Bahu and Jagat Singh were recognized as Husband and Wife in the society. Defendant No.1 and 2 also failed to prove marriage of Phoolan Bahu with Jagat Singh. Therefore, defendant No.1 and 2 being children born of illicit relationship are not entitled to claim inheritance in ancestral coparcenary properties of the family.

13. On plain reading of the impugned judgments and the evidence came on record, it is evident that the defendants no.1 and 2 are illegitimate children of Jagat Singh and Smt. Phoolan Bahu because after the death of her first husband namely Nirpat Singh, Smt. Phoolan Bahu started living with Jagat Singh without performing any marriage with him and this fact has not been rebutted in evidence by the defendants. Thus, it is true and admitted facts that the defendants no. 1 and 2 are not the children of Nirpat Singh. It is trite law that the maternity is a fact and paternity is a presumption.

14. Thus, from the aforesaid discussions, it is found that the learned both the courts below have committed error of law in holding that the defendants no. 1 and 2 / respondents no. 1 and 2 being illegitimate children are entitled to claim inheritance in ancestral coparcenary properties of the family and further committed gross error in allowing the counter claim of defendants no. 1 and 2. I find much force on the submissions made by learned counsel for the appellants. The judgment on which reliance has been placed by the respondents do not help them looking to the peculiar facts and circumstances of the present case.

15. Accordingly, this second appeal is allowed and the impugned judgment and decree dated 12.5.2006 and 28.08.2004 respectively passed by learned both the courts below are hereby set-aside, meaning thereby, the suit of the plaintiffs is hereby decreed and counter-claim of defendants No.1 & 2 is dismissed. Consequently, defendants no. 1 and 2 shall not be entitled to claim half share in the suit land. Needless to say that interim order, if any granted earlier, stands vacated. Looking to the facts and circumstances of the case, there is no order as to costs. Decree be drawn accordingly.

16. A copy of this judgment along with record be sent back to the courts below for its compliance.

(ARUN KUMAR SHARMA) JUDGE JP/-